



2026 FDCPA COMPLIANCE UPDATE

5 DEVELOPMENTS COLLECTION PROFESSIONALS SHOULD KNOW

The following is a concise summary of the cited research concerning recent FDCPA court decisions, CFPB guidance withdrawals, and Regulation F. It is limited to the developments and descriptions contained in the cited sources.

1. ARTICLE III STANDING REMAINS UNSETTLED ACROSS CIRCUITS

Whether a consumer can sue in federal court for a statutory FDCPA violation without economic loss or another tangible consequence depends heavily on the circuit and the type of intrusion alleged. The research states that standing is a major litigation issue and not a merits safe harbor; courts are divided.¹

2. SIX v. IQ DATA INTERNATIONAL, INC. - NINTH CIRCUIT (FEB. 24, 2025)

The Ninth Circuit held that a consumer who received one collection letter directly, after the collector had been notified that the consumer was represented by counsel, had concrete Article III injury to sue under FDCPA § 1692c(a)(2). The court treated the unwanted direct communication as closely related to the common-law privacy harm of intrusion upon seclusion. The Supreme Court denied certiorari in October 2025, leaving the Ninth Circuit holding intact without resolving the broader circuit disagreement.²

3. KOONTZ v. SN SERVICING CORP. - FOURTH CIRCUIT (APR. 4, 2025)

The Fourth Circuit held that a Chapter 7 discharge did not mean the consumer ceased to have a “debt” or to be a “consumer” under the FDCPA where a mortgage lien remained enforceable. The court also found that the servicer’s communications could constitute debt-collection activity and that the plaintiff adequately pleaded an FDCPA § 1692f claim, although not a § 1692e claim.³

4. CFPB WITHDREW 67 GUIDANCE DOCUMENTS

On May 12, 2025, the CFPB withdrew 67 interpretive rules, policy statements, advisory opinions, and other guidance documents. The withdrawn materials included FDCPA-related guidance concerning medical-debt collection, time-barred debt, and “pay-to-pay” fees. The research states that this does not repeal the FDCPA, invalidate Regulation F, or make the conduct addressed in those documents lawful; the withdrawn documents are no longer current CFPB interpretive/enforcement guidance while the Bureau reviews them.⁴

5. REGULATION F REMAINS IN FORCE

The research states that Regulation F, 12 C.F.R. Part 1006, continues to implement the FDCPA and includes rules governing electronic communications, validation disclosures, call-frequency presumptions, and other collection practices. The CFPB’s current Regulation F page independently states that Regulation F implements the FDCPA, and current § 1006.1 identifies Part 1006 as Regulation F and states that it carries out the purposes of the FDCPA.⁵

SOURCES & PRIMARY-SOURCE CORROBORATION

1. Supplied research summary, pp. 1 and 4. 2. Supplied research summary, p. 1: *Six v. IQ Data International, Inc.*, Ninth Circuit (Feb. 24, 2025). 3. Supplied research summary, p. 2: *Koontz v. SN Servicing Corp.*, Fourth Circuit (Apr. 4, 2025). 4. Supplied research summary, pp. 3-4; CFPB Guidance page and Withdrawn Guidance page, confirming the May 12, 2025 withdrawal and identifying the medical-debt, time-barred-debt, and pay-to-pay-fee materials. 5. Supplied research summary, p. 4; CFPB, 12 C.F.R. Part 1006 - Fair Debt Collection Practices Act (Regulation F), and current § 1006.1, Authority, Purpose, and Coverage.

IMPORTANT - EDUCATIONAL INFORMATION ONLY - NOT LEGAL ADVICE OR A LEGAL OPINION

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